



Hertfordshire County Council Act 1971

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ELIZABETH II



1971 CHAPTER xlv

An Act to confer further powers on the Hertfordshire County Council and local and other authorities in the administrative county of Hertford in relation to lands and the local government, improvement and finances of the county; to make further provision for the superannuation of employees and as to the holding of courts of quarter sessions for the county; and for other purposes.

[27th July 1971]

WHEREAS—

(1) It is expedient that further and better provision should be made with reference to lands and for the local government, improvement and finances of the administrative county of Hertford and that the powers of the county council of that administrative county (hereinafter referred to as “the Council”) and of local and other authorities within that administrative county should be enlarged and extended as by this Act provided:

(2) It is expedient to make further provision for the superannuation of the officers and servants of the Council and of local and other authorities in the county and of persons who contribute to the superannuation funds of the Council and of such local and other authorities and to amend the enactments relating thereto:

(3) It is expedient to make further provision as to the holding of courts of quarter sessions for the county:

(4) It is expedient that the other provisions in this Act should be enacted:

(5) The purposes of this Act cannot be effected without the authority of Parliament:

1933 c. 51. (6) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Short title. 1. This Act may be cited as the Hertfordshire County Council Act 1971.

Division of Act into Parts. 2. This Act is divided into Parts as follows:—
 Part I.—Preliminary.
 Part II.—Lands.
 Part III.—Finance.
 Part IV.—Superannuation.
 Part V.—Miscellaneous.
 Part VI.—General.

Interpretation. 3.—(1) In this Act the several words and expressions to which meanings are assigned by section 343 of the Act of 1936 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless otherwise expressly enacted or unless the context otherwise requires the following expressions have the meanings hereby respectively assigned to them:—

“ Act of 1933 ” means the Local Government Act 1933;

1935 c. cxiii. “ Act of 1935 ” means the Hertfordshire County Council Act 1935;

1936 c. 49. “ Act of 1936 ” means the Public Health Act 1936;

1937 c. 68. “ Act of 1937 ” means the Local Government Superannuation Act 1937;

1960 c. xlix. “ Act of 1960 ” means the Hertfordshire County Council Act 1960;

1962 c. 38. “ Act of 1962 ” means the Town and Country Planning Act 1962;

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—cont.

“ Act of 1968 ” means the Town and Country Planning Act 1968;

1968 c. 72.

“ Council ” means the county council of the county;

“ county ” means the administrative county of Hertford;

“ county fund ” means the county fund of the Council;

“ daily fine ” means a fine for each day on which an offence is continued after conviction thereof;

“ district ” means a borough or an urban or rural district in the county;

“ enactment ” includes an enactment in this Act or in any general or local Act and any order, byelaw or regulation for the time being in force within the county or within a district;

“ local authority ” means the council of a district;

“ recognised stock exchange ” in its application to the United Kingdom has the meaning assigned thereto by subsection (1) of section 26 of the Prevention of Fraud (Investments) Act 1958;

1958 c. 45.

“ rural district ” means a rural district in the county;

“ rural district council ” means the council of a rural district;

“ signature ” includes a facsimile of a signature by whatever process reproduced;

“ urban district ” means a borough or an urban district in the county;

“ voluntary school ” has the same meaning as in subsection (2) of section 9 of the Education Act 1944.

1944 c. 31.

(3) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by or by virtue of any subsequent enactment including this Act.

PART II

LANDS

4.—(1) The Council, by means of an order made by the Council and submitted to, and confirmed by, the confirming authority, may be authorised to create in favour of the Council in, over or under any land which under any enactment the Council may be authorised to acquire compulsorily any easement or other right in, over or under, or in relation to, such land which, in the opinion of the confirming authority, is essential to the full enjoyment or use of any land or building owned or occupied, or intended to be acquired or occupied, by the Council for the purposes of any of their undertakings, powers or duties.

Compulsory acquisition of easements.

PART II
—cont.

(2) The confirming authority shall not confirm any order under this section unless the confirming authority determine that the easement or right can be created without material detriment to the land in, over or under or in relation to which it is proposed to be created or, in the case of a park or garden belonging to a house, without seriously affecting the amenity or convenience of the house.

1946 c. 49.

(3) The Acquisition of Land (Authorisation Procedure) Act 1946 shall apply as if this section were an enactment in a public general Act and in force immediately before the commencement of the said Act and as if—

(a) the expression “compulsory purchase of land” in the said Act of 1946 included the creation of such easement or right as is mentioned in subsection (1) of this section; and

(b) paragraphs 9 and 10 of Schedule 1 to the said Act of 1946 applied to the creation of such easement or right as is mentioned in the said subsection (1), whether it is created in, over or under any land to which either of those paragraphs relates or in, over or under any other land in which the person entitled to the benefit of either of those paragraphs has an easement or other right, being an easement or other right which, if it were land, would be land to which the paragraph relates.

1965 c. 56.

(4) No such easement or right as is mentioned in subsection (1) of this section shall be deemed part of a house, building or manufactory or of a park or garden belonging to a house within section 8 of the Compulsory Purchase Act 1965.

(5) In this section “confirming authority” means the authority having power to authorise the compulsory purchase of the land for the enjoyment or use of which the easement or other right is required or which would have had such power if such land were not already owned by the Council.

(6) The foregoing provisions of this section shall apply to a local authority and for that purpose those provisions shall have effect as if for references to the Council there were substituted references to the local authority and subject to any other necessary modifications.

Extension of
Act of 1962.

5.—(1) In any case in which application is made under the Act of 1962 for permission to develop land adjoining a trunk or classified road in the county that part of the road to which this section applies shall for the purposes of—

(a) any conditions which may be imposed on the grant of permission to develop the land in order to secure that proper provision is made for vehicles to stand clear of the carriageway of the road;

(b) the carrying out of any works in compliance with any such conditions; and

PART II
—cont.

(c) the enforcement of compliance with such conditions pursuant to Part IV of the Act of 1962 and Part II of the Act of 1968;

be deemed to be land under the control of the applicant or as the case may require land in the same ownership and occupation as the land in respect of which the application for permission to develop was made.

(2) This section applies to that part of the road between the boundary of the road on the side on which the land to which the said application relates is situated and the near edge of the carriageway to the extent to which such part lies in front of the said land and to any additional extent which may be reasonably necessary in order to secure such provision as is mentioned in paragraph (a) of subsection (1) of this section.

(3) Any works which are carried out on a part of a road to which this section applies in compliance with a condition imposed on the grant of permission to develop land shall after their completion be maintained as part of the road at the expense of the highway authority for the road.

(4) The provisions of Part II of, and the Fourth Schedule to, the Public Utilities Street Works Act 1950 shall apply in relation to the carrying out of any works to which this section applies as if they were works executed for road purposes by, or on behalf of, the highway authority for the road. 1950 c. 39.

(5) In this section the expressions “classified road” and “trunk road” have the same respective meanings as in the Highways Act 1959. 1959 c. 25.

PART III

FINANCE

6.—(1) The Council may borrow—

Power to
borrow.

(a) such sums as may be necessary for any of the purposes of this Act;

(b) without the consent of any sanctioning authority, such sums as may be necessary for paying the costs, charges and expenses of this Act;

and, subject to the provisions of this section, Part IX of the Act of 1933 shall have effect as if money borrowed under this section were borrowed under that Part.

(2) The Council shall repay sums borrowed under paragraph (b) of the foregoing subsection within five years from the date of borrowing.

PART III
—cont.

Power to
Council to
raise money
by issue of
bills.

7.—(1) In addition to the modes of borrowing prescribed by the Act of 1933, the Council may raise money—

- (a) for any purpose for which the Council are authorised to borrow;
- (b) in anticipation of the receipt of revenues, for any purpose for which the revenues of the Council may properly be applied;

by means of bills (to be called “ Hertfordshire County Council bills ” and in this section referred to collectively as “ bills ” and separately as “ a bill ”) subject to and in accordance with the following provisions:—

- (i) A bill shall be in the form prescribed by regulations made under this section and shall be for the payment of the sum named therein in the manner and at the date therein mentioned, being a date not more than twelve months from the date of the bill:
- (ii) A bill shall entitle the holder thereof to payment at maturity of the sum expressed in the bill to be payable:
- (iii) Bills may be offered for purchase (whether by tender or otherwise) in such manner and on such conditions as the Council may determine:
- (iv) Bills shall be issued under the authority of a resolution passed by the Council, and shall bear the signature of the treasurer to the Council or of some other person authorised by the Council:
- (v) The Council may make regulations providing for—
 - (A) the preparation and form and mode of issue, payment and cancellation of bills;
 - (B) the issue of a new bill in lieu of one defaced, lost or destroyed;
 - (C) the prevention, by the use of counterfoils or of a special description of paper or otherwise, of fraud in relation to bills;
 - (D) the giving of a proper discharge on the payment of a bill:
- (vi) The amount of money received in respect of a bill shall be deemed to be principal money raised by means of the bill and the difference between the amount payable in respect of a bill and the amount received in respect thereof shall be deemed to be interest on the principal money so raised:
- (vii) The aggregate amount payable on bills current at any one time shall not (except by the amount payable on bills issued shortly before any other bills fall due in order to pay off the last-mentioned bills) exceed—
 - (A) the sum of six million pounds; or

(B) one-fifth of the amount estimated to be produced by the levying of rates in the county during the then current financial year to meet liabilities falling to be discharged by the Council;

whichever is the greater:

(viii) Subject to the provisions of the last preceding paragraph the Council may renew a bill at maturity:

(ix) The Council may borrow for the purpose of repaying the principal money raised by bills but except as aforesaid any power of the Council to borrow shall be suspended to the extent of the amount which has been raised by the issue of bills.

(2) (a) At the request of a local authority to which this subsection applies who desire to borrow money—

(i) for any purpose for which the local authority are authorised to borrow; or

(ii) in anticipation of the receipt of revenues for any purpose for which the revenues of the local authority may properly be applied;

the Council or a committee of the Council may raise money by means of Hertfordshire County Council bills and shall lend such money to the local authority:

Provided that the aggregate amount payable on bills issued under this subsection for the purpose of lending to the local authority current at any one time shall not (except by the amount payable on bills issued shortly before any other such bills fall due in order to pay off the last-mentioned bills) exceed one-fifth of the amount of so much of the gross rate income of that local authority for the then current financial year as is retained by the authority to meet liabilities falling to be discharged by the authority.

(b) The aggregate amount payable on bills issued under this subsection current at any one time shall not be taken into account in calculating the aggregate amount referred to in paragraph (vii) of subsection (1) of this section.

(c) Any money lent to a local authority by the Council under this subsection shall if so required by the Council be repaid to the Council by the local authority on or before the respective dates on which the bills by which the money was raised fall due for repayment.

(d) All costs, charges and expenses incurred by the Council in respect of any particular loan under this subsection shall be met by the borrower.

PART III
—cont.

(e) This subsection applies to any local authority whose gross rate income in the financial year current at the date of any proposed exercise of the powers of this subsection is not less than three million pounds.

(3) In this section—

“gross rate income” means the gross rate income as used in the determination of the product of a rate of one penny in the pound under rules made pursuant to section 113 of the General Rate Act 1967;

1967 c. 9.

“revenues” has the same meaning as in section 218 of the Act of 1933.

Power to
Council to
raise money
by issue of
bearer bonds.

8. In addition to any other method by which the Council may raise any money which they are authorised to borrow, they may, with the consent of the Treasury and subject to such conditions as the Treasury may impose, raise the money by means of the issue of bearer bonds or other securities to bearer.

Power to
Council to
raise money
abroad.

9.—(1) Any method by which the Council are empowered by any enactment (including the last two foregoing sections) to raise any money which they are authorised to borrow shall, notwithstanding anything in such enactment, be deemed to include the raising of money by that method outside the United Kingdom or in any foreign currency.

(2) (a) The powers conferred by the foregoing subsection shall be exercised only with the consent of the Treasury, and subject to such conditions as the Treasury may impose.

(b) The enactments empowering the Council to raise money shall have effect in relation to a transaction authorised by this section for the raising of money in a foreign currency as if for any reference in those enactments to sterling there was substituted a reference to the foreign currency and for any reference therein to a sum expressed in terms of sterling there was substituted a reference to the sum expressed in terms of the foreign currency (adjusted where necessary to produce an amount which the Council consider appropriate having regard to all the circumstances of the transaction).

Saving for
powers of
Treasury.

1946 c. 58.

10.—(1) It shall not be lawful to exercise the powers of borrowing conferred by the foregoing provisions of this Act, except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act 1946.

1947 c. 14.

(2) Nothing in this Act shall be taken as exempting the Council from the provisions of the Exchange Control Act 1947.

Extension of
power to
invest super-
annuation
fund moneys.

11.—(1) In its application to the investment by the Council under subsection (3) of section 21 of the Act of 1937 of any moneys forming part of but not for the time being required to

meet payments out of the superannuation fund maintained by the Council under that Act, the Trustee Investments Act 1961 shall have effect as if—

PART III
—cont.
1961 c. 62.

(a) the following paragraph was included in Part III (Wider-Range Investments) of Schedule 1 to that Act:—

“ 4. In any securities (other than those included in Part I and Part II of this schedule) issued in any part of the world, being securities which at the time of making the investment are quoted on any recognised stock exchange or similar institution.”;

(b) in Part IV (Supplemental) of the said schedule—

(i) in paragraph 1 there were inserted after the word “ schedule ” the words “ other than those mentioned in paragraph 4 of the said Part III ”;

(ii) after paragraph 2 there were inserted the following paragraph:—

“ 2A. The securities mentioned in paragraph 4 of Part III of this schedule do not include shares or debenture stock not fully paid up (except shares or debenture stock which, by the terms of issue, are required to be fully paid up within nine months of the date of issue).”.

(2) Notwithstanding anything in the said Act of 1961, the Council may invest any moneys referred to in subsection (1) of this section in any manner specified in Part III of Schedule 1 to the said Act of 1961, as amended by this section, and may also from time to time vary any such investments:

Provided that no such moneys as aforesaid shall be so invested at any time when the value of all the investments made in the manner specified in Part III of the said schedule as so amended equals or exceeds three-quarters of the total value of the said superannuation fund.

(3) For the purposes of subsection (2) of this section, the value of any investment of moneys forming part of the said superannuation fund shall be treated as being the value of the investment at the time at which it was made.

(4) Section 55 (Investment of superannuation fund) of the Act of 1960 shall have effect as if—

(a) for paragraph (e) of subsection (1) of that section there were substituted the following paragraph:—

“ (e) in or upon any bonds, debentures, debenture stock, mortgages, obligations or securities or the guaranteed or preference or ordinary preferred or deferred or other stocks or shares of any company

PART III
—cont.

incorporated in any part of the world which are at the time of making the investment quoted on any recognised stock exchange or similar institution; or ”;

(b) in paragraph (f) of subsection (1) of that section after the words “ United Kingdom ” there were inserted the words “ or in any of the Channel Islands or in the Isle of Man ”; and

(c) in proviso (ii) of subsection (1) of that section for the words “ one-half ” there were substituted the words “ three-quarters ”.

Expenses of investment of superannuation fund.

12. All costs, charges and expenses incurred by the Council in investing moneys forming part of the superannuation fund maintained by them, or otherwise in relation thereto, may be paid by the Council out of that fund.

Investment in unit trusts, etc.

13.—(1) For the purposes of the provisions of section 55 (Investment of superannuation fund) of the Act of 1960 and section 11 (Extension of power to invest superannuation fund moneys) of this Act an investment in the units of a unit trust scheme or in participation certificates or in any form of participation under any trust or scheme established in the United Kingdom or in any of the Channel Islands or in the Isle of Man, having the effect of enabling persons to participate in the profits and income arising from the acquisition, holding, management or disposal of such securities or of such land as are specified in those provisions, shall be regarded as an investment in the securities in question or in such land.

1968 c. 25.

(2) In this section “ participation certificate ” has the same meaning as in the Local Authorities’ Mutual Investment Trust Act 1968, and “ unit trust scheme ” has the meaning assigned thereto by section 26 (1) of the Prevention of Fraud (Investments) Act 1958.

1958 c. 45.

Application to certain authorities of provisions of Part III.

14.—(1) The provisions of this Part of this Act mentioned in subsection (2) of this section shall apply to a local authority and for that purpose those provisions shall have effect as if for references therein to the Council and to the county there were substituted references to the local authority and to their district respectively, and subject to any other necessary modifications.

(2) The provisions hereinbefore referred to are the following:—

Section 8 (Power to Council to raise money by issue of bearer bonds);

Section 9 (Power to Council to raise money abroad);

Subsection (2) of section 10 (Saving for powers of Treasury);

Section 11 (Extension of power to invest superannuation fund moneys);

Section 12 (Expenses of investment of superannuation fund); PART III
—cont.

Section 13 (Investment in unit trusts, etc.).

(3) The provisions of the said sections 11 and 13 shall not apply to a local authority except with the consent of the Secretary of State.

PART IV

SUPERANNUATION

15.—(1) In this Part of this Act, except as otherwise expressly provided or unless the context otherwise requires, words and expressions to which meanings are assigned by the Act of 1937 have the same respective meanings and— Interpretation
of Part IV.

“ death grant ” and “ transfer value ” have in relation to a contributor the meanings assigned to them respectively by the Regulations of 1954;

“ contributor ” means a contributor to the fund as respects whom the Council are the employing authority;

“ the principal Acts ” means the Local Government Superannuation Acts 1937 to 1953;

“ the Regulations of 1954 ” means the Local Government Superannuation (Benefits) Regulations 1954;

“ return of contributions ” in relation to a person who has ceased to be a contributor includes any sum paid to or in respect of him by way of interest on the amount of the contributions returned to him;

“ superannuation benefit ” includes any benefit which is or may be granted in pursuance of the principal Acts or the regulations made thereunder.

(2) In this section and sections 16 to 20 of this Act “ the new superannuation provisions ” means those sections and this section.

(3) Without prejudice to the provisions of section 18 (Transfers of employment) of this Act, the provisions of the principal Acts and the regulations made thereunder shall apply and have effect in relation to a person who is a contributor on or after the date of the coming into force of the new superannuation provisions, subject to the extensions, modifications and applications of the said Acts and regulations contained in the new superannuation provisions.

16. The new superannuation provisions shall come into force on 1st September, 1971. Commence-
ment of new
superannua-
tion

17.—(1) Where, after the coming into force of the new super- provisions.
annuation provisions, the employment of a contributor who has Benefits in
attained the age of fifty-five years and completed ten years' certain cases
service is terminated in the interests of efficiency before he has of premature
retirement.

PART IV
—cont.

attained the age of sixty-five years, he shall be entitled to superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment:

Provided that this subsection shall not apply to a contributor if not later than one month after ceasing to hold his employment he notifies the Council in writing that he does not wish this subsection to apply to him.

1963 c. 33.

(2) Where, after the coming into force of the new superannuation provisions, a contributor who has attained the age of fifty-five years and completed twenty-five years' service, but has not attained pensionable age, terminates his employment at his own request, then superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment shall be payable in lieu of any entitlement to a return of contributions under section 10 of the Act of 1937 or in pursuance of the London Government Act 1963 and Article 21 of the London Authorities (Superannuation) Order 1965:

Provided that—

- (i) where a person has become entitled to a superannuation benefit by virtue of this subsection he may, by notice given to the Council in writing at any time before any payment on account of such benefit has been made to him, elect that this subsection and any rights to which he is entitled thereunder shall cease to apply in relation to him as from the date on which such notice is given;
- (ii) unless the Council otherwise determine on compassionate grounds, no benefit shall be paid to a person by virtue of this subsection before the date on which he attains pensionable age.

(3) Where a person, who has become entitled to a superannuation benefit by virtue of subsection (2) of this section, dies before any payment on account of such benefit has been made to him, as from the date of his death the like benefits shall be payable in respect of him as would have been paid if he had died on the last day of his employment as a contributor.

(4) For the avoidance of doubt it is hereby declared that where a person is for the time being entitled to any benefit by virtue of subsection (2) of this section, that benefit shall be deemed to be a superannuation benefit for the purpose of the definition of "service" in subsection (1) of section 40 of the Act of 1937 whether or not any payment has been made to him on account thereof.

1953 c. 25.

(5) For the purposes of section 16 of the Local Government Superannuation Act 1953, and of any rules made thereunder,

a person entitled to a superannuation benefit by virtue of subsection (2) of this section shall be deemed to cease to hold his employment on the day immediately preceding the day on which that benefit first becomes payable to him and a superannuation benefit as aforesaid shall be deemed to be such a superannuation allowance or benefit as is referred to in subsection (1) of the said section 16.

PART IV
—cont.

(6) In this section “pensionable age” in relation to any person means the earliest age at which, if he were to remain a contributor without a break of service, he would, on ceasing to hold his employment, become entitled to superannuation benefits by reason of having otherwise than under this section attained such age and completed such period of service as is prescribed in the principal Acts or the Regulations of 1954 as the case may be.

18.—(1) The Council may, in accordance with the provisions of a scheme made by them for the purposes of this section— Transfers of employment.

(a) as respects any contributor who ceases or has ceased to hold employment under the Council in order to enter an employment (in this paragraph referred to as “the new employment”) in relation to which interchange arrangements are not for the time being in force, if that contributor so desires, in lieu of making any such payment to him from the fund as is referred to in section 10 of the Act of 1937 (or, where such a payment has been made, if it is repaid to the fund by the contributor), either—

(i) make from the fund in respect of him a payment by way of a transfer value to the body or persons responsible for administering any superannuation scheme in connection with the new employment; or

(ii) subject to such consequential provisions as may be prescribed in the scheme, award to or in respect of him superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment under the Council:

Provided that no benefit shall be paid to a person by virtue of this sub-paragraph before such date as may be prescribed under the scheme; and

(b) as respects any person who enters or has entered into employment under the Council from an employment in relation to which interchange arrangements are not for the time being in force, receive any payment made by or in respect of him to the fund, whether by way of

PART IV
—cont.

transfer value or otherwise, and shall confer on him by virtue of such payment such rights under the principal Acts and the regulations made thereunder as may be prescribed under the said scheme.

(2) A scheme made under this section shall be of no effect unless it has been approved by the Secretary of State and the Secretary of State may approve any such scheme either with or without modifications after consultation with such organisations as are, in his opinion, representative of the interests concerned.

(3) A scheme made under this section may be amended or revoked by a subsequent scheme.

(4) Any body or persons responsible for administering a superannuation scheme in connection with an employment, as respects which interchange arrangements are not for the time being in force, may make any amendments or modifications of that superannuation scheme that may be desirable to facilitate the operation of any scheme made by the Council under this section.

(5) Where any provision of the principal Acts or the regulations made thereunder which has effect in relation to a contributor contains a reference to a transfer value, such reference shall be deemed (as may be appropriate) to include a reference to any such payment by way of a transfer value as is referred to in sub-paragraph (i) of paragraph (a) of subsection (1) of this section or to such payment by way of a transfer value or otherwise as is referred to in paragraph (b) of that subsection.

1948 c. 33.

(6) In this section “interchange arrangements” means any arrangements, whether by virtue of rules made under section 2 of the Superannuation (Miscellaneous Provisions) Act 1948, or by virtue of any other enactment apart from this section, providing for the preservation of superannuation rights following a change of employment.

Application
of new
superannua-
tion
provisions to
other
employing
authorities.

19.—(1) An authority to whom this section applies may by resolution adopt all or any of the foregoing sections of the new superannuation provisions as from such date not being earlier than 1st September, 1971, as may be specified in such resolution, and where any provisions are so adopted they shall apply and have effect in relation to the authority as if—

(a) any reference therein to a contributor was a reference to a contributor to the fund as respects whom the authority are the employing authority;

(b) any reference to the Council in section 17 or paragraphs (a) and (b) of subsection (1) of section 18 was a reference to the authority.

(2) Where in pursuance of the foregoing subsection any provisions are adopted by an authority to whom this section applies as from a date later than 1st September, 1971, then any reference in those provisions to 1st September, 1971, or to the date of the coming into force of the new superannuation provisions shall be construed in relation to the authority as a reference to such later date.

PART IV
—cont.

(3) This section applies to—

- (i) a local authority which does not maintain a superannuation fund under Part I of the Act of 1937;
- (ii) the Hertfordshire Police Authority;
- (iii) the Hertfordshire Magistrates' Courts Committee;
- (iv) the Hertfordshire Probation and After-Care Committee;
- (v) any organisation, undertaking or body in respect of which there is for the time being in force an admission agreement with the Council pursuant to section 15 of the Local Government Superannuation Act 1953;
- (vi) any other employing authority in relation to which the fund is the appropriate superannuation fund within the meaning of paragraph (d) of subsection (3) of section 1 of the Act of 1937.

1953 c. 25.

20.—(1) Where a local authority maintains a superannuation fund under Part I of the Act of 1937 any such local authority may by resolution adopt all or any of the foregoing sections of the new superannuation provisions as from such date, not being earlier than 1st September, 1971, as may be specified in such resolution, and where any provisions are so adopted they shall apply and have effect in relation to that local authority as if—

- (a) any reference therein to the Council was a reference to that local authority;
- (b) any reference therein to a contributor was a reference to a contributor to the superannuation fund maintained by that local authority under Part I of the Act of 1937 and as respects whom that local authority are the employing authority; and
- (c) any reference therein to the fund was a reference to the superannuation fund maintained by that local authority under Part I of the Act of 1937.

(2) If any such local authority as is referred to in subsection (1) of this section adopts all or any of the foregoing sections of the new superannuation provisions, any other employing authority

PART IV
—cont.

in relation to which that local authority are the appropriate administering authority may by resolution adopt all or any of the foregoing sections of the new superannuation provisions as from such date as may be specified in such resolution and where any provisions are so adopted any reference therein to a contributor shall be a reference to a contributor to the superannuation fund maintained by the local authority in relation to which such employing authority are the employing authority.

Extension of powers of Council and certain authorities to grant gratuities to widows and dependants of former employees.
1953 c. 25.

21.—(1) Section 18 of the Local Government Superannuation Act 1953, in its application to the county, shall have effect as if—

- (i) for the expression “to the widow or any other dependant” in subsections (1) and (2) there were substituted the words “to a dependant”;
- (ii) after paragraph (c) of subsection (1) there were inserted the following new paragraph:—

“(d) partly by way of an annuity for the benefit of the widow and partly by way of periodical payments for the benefit of such of the children of the deceased employee who shall for the time being be under the age of twenty-one years:

Provided that the aggregate of the capital value of such annuity and of such periodical payments shall not exceed the amount aforesaid”.

(2) Subsection (1) of the said section 18 (as amended by the last foregoing subsection) shall apply to a dependant of a former employee of the Council who dies within one year after ceasing to be in their employment as it applies to a dependant of an employee who dies whilst in their employment:

Provided that no gratuity shall be granted under this subsection to a dependant of a former employee to whom a gratuity has been granted under subsection (1) of the said section 18.

(3) The foregoing provisions of this section shall apply to a local authority as they apply to the Council and for that purpose those provisions shall have effect as if for references to the Council and to the county there were substituted references to the local authority and to their district respectively and subject to any other necessary modifications.

(4) The said provisions of this section shall also apply to the Hertfordshire Police Authority, the Hertfordshire Magistrates’

Courts Committee and the Hertfordshire Probation and After-Care Committee as they apply to the Council and for that purpose those provisions shall have effect as if the references in subsection (2) of this section to an employee of the Council were a reference to an employee of the said authority or of either of the said committees, as the case may require.

PART IV
—cont.

22. For the purposes of section 18 of the Local Government Superannuation Act 1953, as applied to the Council, a person employed in a voluntary school in the county shall be deemed to be employed by the Council, and the Council may grant to or in respect of any such person a gratuity in accordance with the provisions of the said section 18 as amended by the last foregoing section.

Gratuities to staff in voluntary schools.
1953 c. 25.

PART V

MISCELLANEOUS

23. Notwithstanding anything in section 23 of the Criminal Justice Act 1925 the holding of courts of quarter sessions for the county within the Hertford division may be discontinued during such period or periods as the court may from time to time determine.

County quarter sessions.
1925 c. 86.

24.—(1) The Council may make and retain microfilm recordings of documents of the Council.

Microfilming of documents.

(2) Notwithstanding anything in any enactment, the Council may destroy any documents of the Council other than minutes of which they have made and retained microfilm recordings:

Provided that—

- (a) the Council shall not under this section destroy records deposited with them under the Public Records Act 1958, or any other enactment, or acquired or accepted by them under section 2 of the Local Government (Records) Act 1962 or any other enactment or records of a like kind acquired or accepted by them before the commencement of the said Act of 1962;
- (b) the Council shall afford a right of access for the public to a microfilm recording of a document which has been destroyed in pursuance of this section equal to the right of access, if any, of the public to the document so destroyed.

PART V
—*cont.*

(3) An enlargement of a microfilm recording of a document made in pursuance of this section shall be deemed for all purposes to be a copy of that document.

(4) Notwithstanding anything in any enactment or any rule of law, an enlargement of a microfilm recording of a document which has been destroyed in pursuance of this section shall be receivable in evidence for any purpose for which the document would have been receivable in any proceedings in any court in England or Wales if the clerk of the Council certifies that—

- (a) the document has been destroyed; and
- (b) a microfilm recording of the document has been made; and
- (c) the enlargement is an enlargement of that microfilm recording.

(5) In this section unless the context otherwise requires—

- (a) “document” means the whole or part of a register, book, record, letter, map, plan, drawing, photograph or other document and includes a notice, licence, certificate, scheme or order made, passed or granted by the Council or any committee of the Council, and references to documents of the Council are references to documents belonging to or permanently in the possession of the Council;
- (b) “microfilm recording” means a reproduction of a document on film which is a product of photography or any process akin to photography and is in general beyond legibility with the naked eye;
- (c) “minutes” means the minutes of the proceedings of a meeting of the Council or of a committee thereof and includes all reports or other documents appended thereto or incorporated therein.

(6) The foregoing provisions of this section shall apply to a local authority and for that purpose those provisions shall have effect as if for references to the Council there were substituted references to the local authority and subject to any other necessary modifications.

Authentication
of licences
for hackney
carriages.
1847 c. 89.

25. Notwithstanding anything in section 43 of the Town Police Clauses Act 1847, the licence for a hackney carriage granted by a local authority shall not be required to be under the common seal of the local authority, but if not so sealed shall be signed by the town clerk or clerk or other officer of the local authority authorised for that purpose.

26.—(1) A local authority to which this section applies may make byelaws for applying, with such consequential modifications as may be provided for in the byelaws, any of the provisions of—

PART V
—cont.

Provisions as to
motor vehicles
let for hire.
1847 c. 89.
1875 c. 55.

(a) sections 37 to 67 of the Town Police Clauses Act 1847 and section 171 of the Public Health Act 1875, as subsequently amended, as they apply with respect to hackney carriages and their proprietors and drivers; and

(b) any byelaws made by the local authority and in force with respect to such carriages, proprietors and drivers;

to private hire vehicles and their proprietors and drivers:

Provided that nothing in any byelaws made under this subsection or in any provisions applied by such byelaws shall empower a local authority—

(i) to refuse to grant a licence for a private hire vehicle for the purpose only of regulating the number of such vehicles licensed by such authority;

(ii) to fix the rates or fares to be paid for private hire vehicles.

(2) In this section “ private hire vehicle ” means a motor vehicle (within the meaning of the Road Traffic Act 1960) not being a vehicle licensed under the provisions of the Town Police Clauses Act 1847 with respect to hackney carriages, which is kept for the purpose of being let out for hire with a driver for the carrying of passengers in such circumstances that it does not require to be licensed under the said provisions, but does not include—

(a) a vehicle which is kept and used ordinarily for the purpose of being let out for hire by the day or for longer periods of hire;

(b) a vehicle kept by any person in connection with any business carried on by him as a funeral director or undertaker and used wholly or mainly in connection with that business;

(c) a public service vehicle as defined in section 117 of the said Act of 1960; or

(d) any vehicle belonging to or used by the British Railways Board for the purpose of carrying passengers and their luggage to or from any of their railway stations or railway premises.

(3) This section applies to the councils of urban districts and to the council of any rural district within which the provisions mentioned in paragraph (a) of subsection (1) of this section are for the time being in force.

PART V
—cont.

Publication
of bulletins,
etc.

Increase of
fines.

27. Section 45 (Power to publish bulletins etc.) of the Act of 1960 shall have effect as if at the end thereof there were added the words “ or relating to the functions of the Council ”.

28. The provisions of the Act of 1935 and the Act of 1960 specified in column (1) of Schedule 1 to this Act shall have effect as if the maximum fine which may be imposed on summary conviction of an offence specified in that enactment were a fine not exceeding the amount specified in column (3) of that schedule instead of a fine not exceeding the amount specified in column (2) of that schedule.

Alteration of
fees for
licences.

29.—(1) The provisions of section 68 (Licensing of employment agencies) of the Act of 1935 may be amended by an order made by the Secretary of State so as to vary any sum specified by that enactment.

(2) An order made under this section may be revoked or varied by a subsequent order made in like manner.

(3) The power to make an order under this section shall be exercisable by statutory instrument.

(4) Any statutory instrument containing an order under this section shall be subject to annulment in pursuance of a resolution of either House of Parliament.

Amendment of
section 137 of
Act of 1935.

30. Section 137 (Compensation for injuring lamps, etc.) of the Act of 1935 shall have effect as if for the words “ twenty pounds ” there were substituted the words “ fifty pounds ”.

PART VI

GENERAL

Protection of
members and
officers from
personal
liability.

1875 c. 55.

Application
of general
provisions of
Act of 1936.

Costs of Act.

31. Section 265 of the Public Health Act 1875 shall apply to the Council and a local authority as if any reference in that section to the said Act of 1875 included a reference to this Act.

32. The sections of the Act of 1936 mentioned in Schedule 2 to this Act shall have effect as if references therein to that Act included a reference to this Act.

33. The costs, charges and expenses preliminary to, and of and incidental to, the preparing, applying for, obtaining and passing of this Act, or otherwise in relation thereto, shall be paid by the Council out of the county fund, or out of moneys to be borrowed under this Act.

SCHEDULES

SCHEDULE 1

Section 28.

INCREASE OF FINES

Enactment and section (1)	Former maximum fine (2)	New maximum fine (3)
Hertfordshire County Council Act 1935—		
Section 16 (Prohibition of vehicles on grass verges, etc.)	£5	£20.
Section 17 (Communications across grass verges, etc.)	£5 and a daily fine of £2	£20 and a daily fine of £5.
Section 20 (Restriction on interference with bridges, etc., supporting county roads)	£5 and a daily fine of £2	£20 and a daily fine of £5.
Section 26 (Refuse dumps) ...	£200 and a daily fine of £50	£400 and a daily fine of £50.
Section 40 (Separate sewers for sewage and surface water)	£5 and a daily fine of £2	£20 and a daily fine of £5.
Section 71 (Licensing of employment agencies)—		
Subsection (1), paragraph (a) ...	£50 and a daily fine of £20	£200 and a daily fine of £50.
Subsection (1), paragraph (b) ...	£5 and a daily fine of £2	£20 and a daily fine of £5.
Subsection (1), paragraph (c) ...	£5 and a daily fine of £2	£20 and a daily fine of £5.
Section 86 (Licensing of boxing and wrestling entertainments)—		
Paragraph (a)	£50 and a daily fine of £5	£200 and a daily fine of £5.
Paragraph (b)	£20 and a daily fine of £5	£200 and a daily fine of £5.
Section 91 (Court may prohibit moveable dwellings in certain areas)—		
Subsection (4), paragraph (a) ...	£10 and a daily fine of £5	£20 and a daily fine of £5.
Subsection (4), paragraph (b) ...	£10 and a daily fine of £5	£20 and a daily fine of £5.

1935 c. cxiii.

SCH. 1
—cont.

1960 c. xlix.

Enactment and section (1)	Former maximum fine (2)	New maximum fine (3)
Section 92 (Provisions as to moveable dwellings)	£2 and a daily fine of £1	£10 and a daily fine of £2.
Section 93 (Prohibition of moveable dwellings in certain urban districts)	£5 and a daily fine of £1	£20 and a daily fine of £2.
Hertfordshire County Council Act 1960—		
Section 17 (Trees, grass verges and gardens)	£5	£20.
Section 18 (Damage to trees, etc., on highways and in open spaces)	£5	£20.
Section 20 (Verges, etc., of housing estates)	£5	£20.
Section 23 (Milk stands in highways)	£5	£20.
Section 26 (Licence to erect scaffolding)	£5 and a daily fine of £2	£50 and a daily fine of £2.
Section 29 (Defacing of road surface or traffic sign)	£2	£20.
Section 32 (Mixing of mortar in streets)	£5	£20.
Section 33 (Sale of food and articles on verges, etc.)	£2 and a daily fine of £2	£50 and a daily fine of £2.
Section 38 (Prohibition on solicitation of school children to sell or exchange articles, etc., at schools)	£5	£10.
Section 41 (Offences in respect of telephone boxes, etc.)—		
Subsection (1)	£5	£20.
Subsection (2), paragraph (a) ...	£10	£20.
Subsection (2), paragraph (b) ...	£25	£50.
Section 77 (Power to use ladders, etc., for entry or inspection)	£5	£20.
Section 80 (Special provisions as to registration of nursing homes)	£5 and for a second or subsequent offence £20	£10 and for a second or subsequent offence £40.
Section 81 (Special provisions as to registration of disabled persons' and old persons' homes)	£5 and for a second or subsequent offence £20	£10 and for a second or subsequent offence £40.

SCHEDULE 2

Section 32.

SECTIONS OF ACT OF 1936 APPLIED

Section	Marginal note
283	Notices to be in writing; forms of notices, etc.
284	Authentication of documents.
285	Service of notices, etc.
288	Penalty for obstructing execution of Act.
328	Powers of Act to be cumulative.

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